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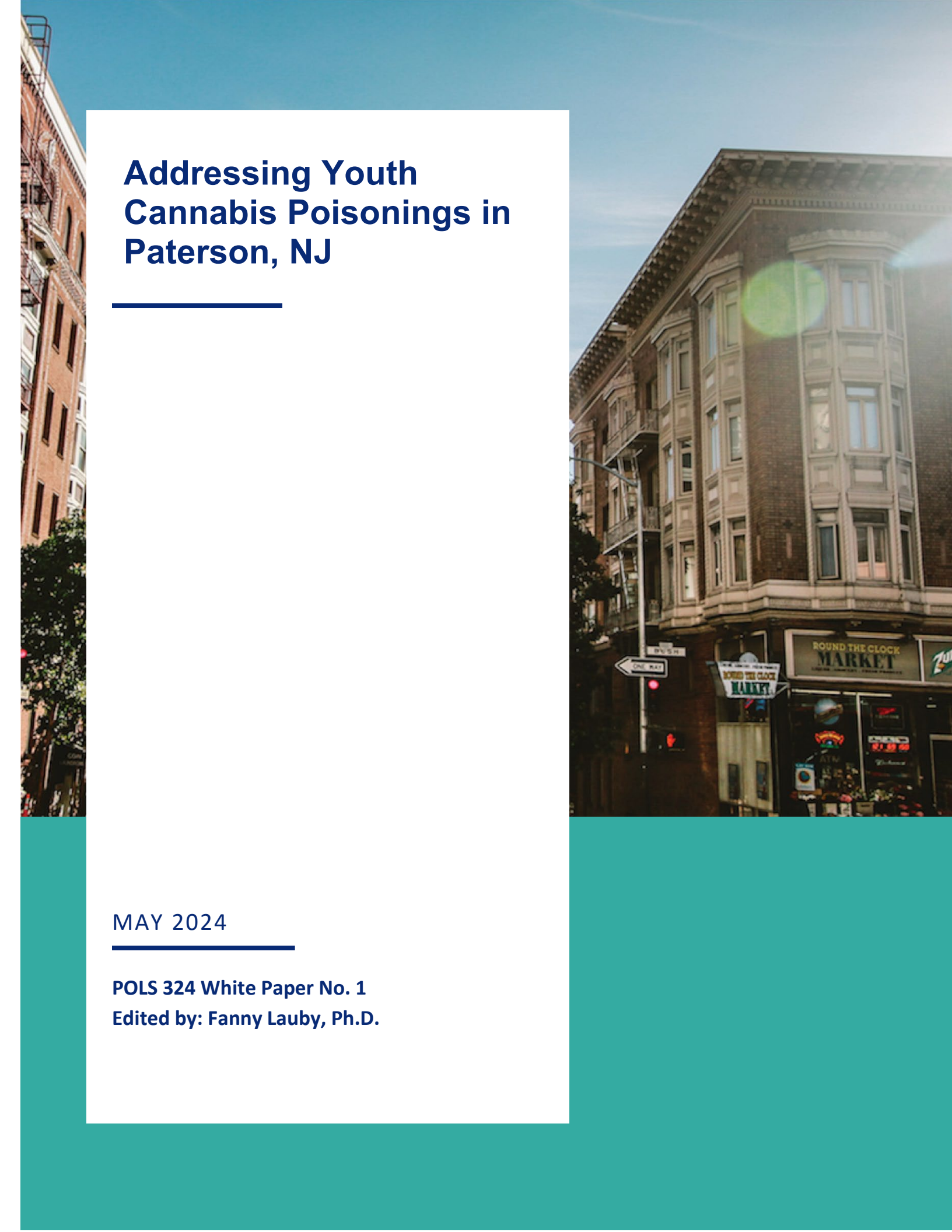
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Addressing Youth Cannabis Poisonings in Paterson, NJ

MAY 2024

POLS 324 White Paper No. 1
Edited by: Fanny Lauby, Ph.D.

Addressing Youth Cannabis Poisonings in Paterson, NJ

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Montclair State University

Spring 2024

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Executive summary

Aissatou Diallo, Tyler Jones, Gerard Song, Amiya Strother

On February 22, 2021 the New Jersey Legislature passed the Cannabis Regulatory, Enforcement Assistance, and Marketplace Modernization Act. This bill amended several parts of existing statutory law, and allowed for the sale of marijuana and other cannabis items for persons over the age of 21. However, with the passage of this act, youth related cannabis poisonings have seen an increase. These subsequent sections of this report will highlight how Communities Organizing for Prevention and Empowerment (C.O.P.E.) can play a vital role in the community of Paterson to help prevent future cannabis poisonings and exposures amongst the youth.

Key Findings

This report has found that various local stores within the city of Paterson have been packaging and displaying cannabis items in a similar fashion to candies popular with children, thus leading to instances of children purchasing these items and consuming them. This highlights issues surrounding enforcement of various New Jersey statutes regulating the distribution of cannabis items to those under the age of 21. This negligence at the hands of store owners has helped contribute to the increase of cannabis poisonings due to being so easily accessible by children. The increased normalization of cannabis uses with its legalization and the lack of awareness surrounding the improper consumption of it has also greatly contributed to this rise in poisonings. Finally, the related findings suggest that advocating for better enforcement of the law along with increased public awareness of irresponsible cannabis consumption will lead to a decrease in reported cannabis poisonings amongst children.

Proposed Solutions

Policy solutions to solve this problem are stricter enforcement of current laws which are 2022 New Jersey Revised Statutes Title 2A - Administration of Civil and Criminal Justice Section 2A:170-51.13 and NJSA § 2C:33-15, spreading awareness of these issues to schools, minors, teachers, and especially parents, is needed to educate people that minors consuming any cannabis products is bad for them. It needs to be emphasized that adults distributing cannabis related products to minors is unacceptable and will not be tolerated through tougher punitive punishments. The stronger the punishment, equals the less likelihood of citizens violating that

law. That is why there needs to be more regulation and legislation written on stopping minors consuming cannabis related products and stopping adults distributing it to minors. Stores that are close to schools (within 1,000 feet) should be checked and inspected regularly by law enforcement to see that they are not selling cannabis related products.

Recommendation

Many of the proposed solutions mirror those advocated by various groups, including tightening measures involving police, such as store checks and police intervention in schools, and fostering bonds between law enforcement and youth. Other solutions emphasize community outreach and support from educators, parents, and police to protect children's health and safety in these underserved areas. Additionally, the idea of placing potentially harmful products behind the counter was suggested, reducing their visibility to minors and requiring underage individuals to request them directly, which enhances safety in Paterson. Paterson is just one of many underserved communities in NJ encountering substance abuse dangers among minors. Our proposal aims to support C.O.P.E. 's mission and advocate for policymakers to enact stronger laws to combat misuse and abuse of dangerous substances by underaged kids.

Introduction

Fanny Lauby, Ph.D.

In 2020, New Jersey voters approved a ballot question which paved the way for the state to allow recreational marijuana to be sold to adults through licensed stores, which was accomplished through legislation in 2022. Though the sale of recreational marijuana has been strictly regulated, other cannabis products have appeared in many unlicensed stores. This is a result of the Farm Bill adopted by the U.S. Congress in 2018, which exempted hemp from the Controlled Substances Act Schedule as long as its THC content was less than 0.3%. The Drug Enforcement Administration (DEA) has ruled that a particular type of THC, known as Delta-8, is legal, and has been sold in a widely unregulated fashion since the mid-2010s. Since these unlicensed, unregulated cannabis products are sold in innocuous places like gas stations and bodegas, and made available in semi-professional packaging that resemble traditional snacks and other products appealing to children.

In the last few years, the impact of the availability of these unregulated cannabis products has exposed young children to greater risks. Recent data show that 39% of high schoolers in New Jersey have used marijuana before. In Paterson, NJ, 45% of youth said that marijuana is easier to access than any other drug, and a quarter of youth believe that marijuana use poses no threat to their health. the number of child cannabis poisonings has skyrocketed in the last few years. Yet data from COPE (Communities Organizing for Prevention and Empowerment) indicate that 1 in 6 youth become addicted to marijuana. In addition, the

number of cannabis poisonings among youth has increased by 1,375% between 2017 and 2021. Though this predates the availability of licensed marijuana in New Jersey, it follows the adoption of the 2018 Farm Bill. However, legalization can also lead to increased exposure, as data from Canada shows.

This white paper was written as a course requirement for POLS 324 Advanced Public Policy Analysis at Montclair State University. In the course, students analyze public policy and examine current issues. The learning objectives of the course include “critically evaluate the goals and assumptions of different policy proposals,” “create a policy proposal for public problem,” and “evaluate the proposals developed by their peers.” For the spring 2024 iteration of the course, I invited COPE to bring a problem for the students to work on during the semester. COPE is an organization who works out of Montclair State University’s Department of Family and Child Studies. They gave a presentation on the increase in cannabis exposure and poisonings among youth in Paterson, NJ, and tasked the students with developing actionable solutions to this problem. Students formed groups, each picking a particular aspect of the problem (liability, access, packaging, product quality), and worked together on solutions. Each group authored a chapter, and students competed to produce the executive summary.

The following white paper presents the students’ findings and recommendations. This is being presented as the work of the students and the professor. Nothing herein is the official opinion of Montclair State University.

Chapter 1: Youth Access to Cannabis Products

Aissatou Diallo, Tyler Jones, Gerard Sona, Amiya Strother

Introduction

The policy issue that we will be discussing in this chapter is about the liability aspect of the illegal sales of marijuana towards minors in Paterson. In the 1970s the federal government passed the Controlled Substance Act (CSA). That act banned any manufacturing, importation, possession, and use of marijuana both medically and recreationally (Bond, 2019). In April 2022, the House passed legislation that would legalize the sale of weed to those 21 and older, remove it from being a schedule I drug and start expunging marijuana convictions from records, but it was stalled in the Senate due to a filibuster. Fearing for the safety of younger consumers, companies and trademark groups requested the Senate to tighten anti-counterfeiting laws, which would prohibit sellers from using packaging that targets younger demographics. By December 2022, President Biden signed the Medical Marijuana and Cannabidiol Research Expansion Act into law, which became the first standalone cannabis reform legislation making way for other pieces of legislation and more states to follow suit in the legalization of marijuana (Price, 2022).

While celebrated as a victory by voters, this legalization brought marijuana infused products to convenience stores in urban communities such as Paterson, NJ. These products are often packaged and displayed like snacks and candy brands that already exist which minors or

anyone can just pick up easily and buy. Due to the negligence by both store owners that are selling these products to minors and manufacturers that are releasing these products in packaging similar to an already existing one. Minors then can become addicted to these substances which result in them facing problems such as drug poisoning, impairment and not having the best school performance. This is where the liability aspect kicks in, liability in this aspect means being responsible for something that happened within your own doing. Store owners have a huge liability problem on their hands if found that they are selling marijuana products to minors without verification.

The problem and its context

Licensed dispensaries in New Jersey are regulated and overseen by the CRC or “Cannabis Regulatory Commission.” This commission prohibits dispensaries from allowing cannabis related smells from escaping the premises and from selling food or drinks including alcohol. Regular stores who are selling cannabis products do not follow these rules because they disguise their drugs as food products. So, because they are not operating as dispensaries they evade legal consequences. The blame for minors accessing marijuana products has shifted from police officers to store owners selling the products, merchants providing them, schools not checking student lockers, or parents failing to emphasize the dangers of drugs to their children. Consequences for minors found in possession of such drugs are subject to a civil penalty of \$250 for the first violation, a civil penalty of \$500 for the second violation, and shall

be guilty of a petty disorderly personal offense, for a third and each subsequent violation (N.J. Stat. §2A:170-51.13).

Liability is a legal term which refers to the obligation or responsibility which would fall upon someone based on their actions (Wex, 2022). When it comes to liability we say that those who should be held liable for minors getting their hands on cannabis products should be store owners because not only are they selling these products, but they are also buying them from merchants. In New Jersey, 39% of high schoolers have used marijuana (P-CASA, 2017). According to P-CASA, 25% of Paterson youth have admitted to using marijuana in the past 30 days which is above both the country and state average. Then 45% of the Paterson youth said that marijuana is easier to access than any other drug and 27% believe that marijuana usage has no risk on their health. This is a problem and a problem that could be solved or help reduce the amount of marijuana or cannabis use if the Paterson youth understand the bad effects of marijuana and cannabis. The actions of store owners are reckless, they violate regulations set forth by statutes, and their products can cause harm to those who are not meant to consume the product which are all aspects of liability (Merriam-Webster, 2024).

Possible Solutions

When it comes to possible solutions to this issue, it is key to recognize that the sale of cannabis related products to people under the age of 21 is already illegal (*NJSA § 2C:35-5*) and (2022 New Jersey Revised Statutes Title 2A - Administration of Civil and Criminal Justice Section 2A:170-51.13). *NJSA § 2C:33-15* lists consequences of violating this statute. This statute is

written about first violations of people under the age of 21 to third violations which has been explained in the previous section. *NJSA § 2C:35-5* makes it illegal for people who are not legal dispensers to distribute cannabis products. A counterfeit controlled dangerous substance is a substance that is not authorized to be manufactured by a legal distributor or dispenser. In subsections b.10 to b.12 of *NJSA § 2C:35-5* is written about marijuana and hashish. These parts of the subsection are referring to the punishment or fine given to any offenders based on the amount of marijuana or hashish they create in order to distribute unlawfully and without a dispenser license. The solutions that will be proposed here are store checks and stronger enforcement of the law, stronger punishments for the sale of any cannabis related products to people under the age of 21, and community outreach.

1. Store checks and strong enforcement of the law

Stricter enforcement of the law by law enforcement is the first step to fix this problem but also more store inspections and more barriers like making it mandatory for store clerks and stores to keep cannabis related products behind the counter through a local municipal ordinances or state law. This problem can't likely be solved fully, but overall the scope of this problem could be heavily reduced if these solutions are put in place. Solution 1 requires in-store checks and stronger enforcement of the law because *NJSA § 2C:35-7* says that it is illegal for any citizen to sell a controlled dangerous substance within 1,000 feet of a school zone or educational institution, and cannabis is considered a controlled dangerous substance. This law

unfortunately doesn't apply to licensed distributors of cannabis products though. That is a problem, yes, citizens shouldn't be allowed to distribute cannabis within 1,000 feet of a school but even licensed cannabis distributors shouldn't be allowed as well. Every store that is within 1,000 feet of a school, should be checked to make sure they aren't selling cannabis products illegally or without a license. More store inspections, especially around schools, should occur by police officers or school resource officers to make sure that the store isn't selling any cannabis products illegally or selling them to people under the age of 21. There should be state laws or town ordinances in Paterson that make it illegal for the sale of any cannabis products within 1,000 feet of a school. COPE should advocate for these new regulations on cannabis.

2. Stronger Punishments for the sale of any cannabis related products to people under the age of 21

There needs to be more legislation written and directed towards this issue. There needs to be more legislation about the illegality of people distributing cannabis products to people under the age of 21. There also needs to be stronger punishments for violating this in written legislation to make it clear that it is against the law to distribute cannabis to people under the age of 21. This is the number one priority to solve this issue. There has to be new laws that clarify the illegality of people selling or distributing cannabis products to people under the age of 21 and contain stronger punishments. This would clarify the law on distributing to people under the age of 21 and it would incentivize sellers not to sell to people under the age of 21 because there would be a stronger punishment for that crime. The punishment would be a

felony in the fourth degree and that violator could face up to 18 months in prison. That violator will also be responsible to pay a \$10,000 fine. But if the offender distributes any cannabis product to a person that is 18 years old and under the age of 21 then that offender, if found guilty, committed a petty disorderly offense where he could face up to 30 days in jail and pay a \$500 fine. A tougher punishment for distributing marijuana or cannabis will reduce the amount of marijuana being distributed to people under the age of 21.

COPE should advocate for this and bring this up to the state assembly members, state senators, and the governor. Raise awareness for this issue through social media and activism. COPE should also advocate for the changing and clarification of the law that is regarded to this issue because the law currently, in this state, is unfortunately not clear and not as clear as states like New York and Colorado. Other goals that COPE should advocate for is making the smell of marijuana on school grounds a reason to search and the legal amount of marijuana to carry should be lowered from 6 ounces to 2 ounces for people over the age of 21. No person who is under the age of 21 should be allowed to carry or purchase any cannabis related products. Anything over 2 ounces but less than 4 ounces should be a misdemeanor and anything over 4 ounces should be a felony in the fourth degree where a violator could face up to 18 months in prison. COPE should pressure and voice these proposals to the state assembly members, state senators, and the governor because it will overall help the Paterson community.

Colorado is a state known for being one of the very first states to legalize recreational use of marijuana. The state of Colorado allows people who are 21 years of age and older to be able to purchase up to 1 ounce of retail marijuana but no more than that just like New Jersey. But the law in both states are different for possession. In Colorado if a person possesses more than 2 ounces but less than 6 ounces, that would be considered a misdemeanor that could land that person in prison between 3 months to 364 days and/or pay a \$1,000 fine. If the person possesses more than 6 ounces would be a misdemeanor that could land that person in prison between 6 to 18 months in prison and/or pay a \$5,000 fine (NORML, 2023). So, in the state of Colorado you can possess up to 2 ounces of marijuana and anything over that is a crime. But in New Jersey, the legal amount to possess is 6 ounces. Anything over 6 ounces of marijuana being possessed by an individual in New Jersey is a crime that could land that person up to 18 months in prison and/or pay a \$25,000 fine.

If the violation is within 1,000 feet of a school zone then that violator would also be punished with 100 hours of community service and an additional fine (NORML, 2023). What is being proposed here is that New Jersey should follow the same direction as Colorado because that will set a new standard for the state. Whatever the state does with the legalization or regulations regarding marijuana or cannabis related products will have a good impact on Paterson which makes it crucial to solve this issue. Activism through social media and contacting local and state politicians will help the people of Paterson.

3. Community Outreach

This issue has to gain more awareness and reaching out to schools in Paterson will get the message out. The best way to get the message in the community is to educate, not just the children in the schools, but also the teachers, school staff, etc. that is a problem that needs to be taken seriously. Community outreach and a collective community effort in Paterson to raise awareness about minors and the people under the age of 21 having easy access and gaining access to marijuana is essential in solving this issue. It needs to be taught to young people, their parents, school teachers, school staff, and everyone in the Paterson community that marijuana and cannabis consumption is bad for brain development in young people. According to a CDC report on the impact of marijuana use on teen health and wellbeing, “Marijuana use beginning in teen years or younger may affect brain development which may impair thinking, memory, and learning” (CDC, 2024). It also has an impact on people’s mental health, “Marijuana use has been linked to depression and social anxiety in adults” (CDC, 2024).

Cannabis and marijuana consumption by people are not only linked to depression and social anxiety, but it also is known to potentially cause schizophrenia. The CDC says this can happen to adults who consume cannabis, so cannabis is potentially a dangerous substance and children or people under the age of 21 shouldn’t start consuming it without knowing the dangers of it beforehand. That is why an education campaign in Paterson’s schools is necessary to solve this issue of minors and people under the age of 21 consuming marijuana or cannabis related products.

Evaluation of solutions

From the above listed policy solutions, one should keep in mind the realistic extent to which programs like COPE can go in their mission to resolve youth-related cannabis poisonings. We wholly understand the unique challenges involved in the attempts to invoke change through petitioning, but believe that these calls for change can greatly help the city of Paterson.

According to our list of possible solutions, the one which we believe would have the greatest impact on youth-related cannabis poisonings involves advocating for stronger punishments against stores distributing cannabis to minors. This solution can hopefully lead to better enforcement of the current laws and lead to fewer stores in Paterson irresponsibly selling cannabis items to minors. However, this is not the policy we recommend.

As a health advocacy organization, we understand that C.O.P.E. might not have the available resources to successfully advocate for better enforcement of current laws, especially due to the areas in which we feel the current legislation falls short as we have previously highlighted. Due to being funded via federal grant, it is impossible for C.O.P.E. to successfully lobby in Trenton. When it comes to stricter enforcement of the law, it is unlikely to succeed due to guidance provided to law enforcement agencies by the State Attorney General's Office to stop certain cannabis-related arrests. Due to these reasons, the proposed solutions of better law enforcement, more frequent store inspections, and creation of more barriers, while being valid solutions, are unlikely to be enacted.

With this in mind, the most realistic solution and one which likely best encompasses the mission of C.O.P.E., to help decrease substance use among youth and adolescents through comprehensive workshops. The implementation of a community-based program with the goal of teaching authority figures such as parents and school officials about the growing rising cannabis use can lead to more oversight on the actions of the youth and help reduce the number of incidents related to improper cannabis use.

Table 1. Evaluation Matrix

Policy Solutions	Effectiveness	Enforceability	Cost-Effective	Score Summary
Implementing random store checks by law enforcement officers				6
Informing authority figures such as school staff and parents of the growing rise of cannabis use				5
Stronger punishments for stores distributing cannabis to minors				9

Recommendation

The recommended solution that we suggest is community approach, which is more intervention from institutions like schools and government and also more cooperation from stores and parents in reducing access for students to get these products. What cooperation would look like is that with the program targeting schools, parents and store owners alike, it is going to teach each participant in this issue about the effect that marijuana has on the youth. Store owners would be taught about the exact rules about selling marijuana products to minors and what it will look like if they insist on selling it and what their liability is. This is where the cooperation would kick in, all participants need to cooperate together in making sure minors have no access to marijuana products. We choose this solution because when it comes down to it, the people that have the most access to these youth are the one that can make the most change. As said before although approaches such as D.A.R.E and Keepin' It Real failed in the past because of the way it was implemented and its target audience which were elementary aged children rather than older children such as middle schooler and high school, it does not mean that it is an approach that we should abandon because at the end of the day the more people know the effect that marijuana has on the youth then even if it is not in high numbers, there would still be parents whose make sure their child does not fall under the influence.

This would be more effective than police talking to kids because then they wouldn't have to be so afraid that they don't take in the information that's being provided. Institutions like schools

are always the best measure when it comes to information and prevention because when the youth are directly shown the effect that doing substances at the age will have on them this can potentially stop or deter them from dabbling in illegal substances that could cause them harm. As for police being another institution needed, although we wouldn't want them scaring the kids by talking about drugs with them, we still need them to relay the consequences that could happen if they were found with illegal substances on them. The way they can help is by patrolling around schools and parks or anywhere minors will interact with the most so that they can be discouraged from doing it if they knew they were being watched.

Conclusion

Our policy issues have focused on the liability aspect of the illegal sales of marijuana towards minors in Paterson. Some of our possible solutions to combat this issue is better enforcement of the law, more store inspection/especially near schools, create more barriers, and last but not least more intervention from institutions like schools and government (through enforcement). The solution that we do recommend is the intervention from institutions like schools and government. We recommend this solution the most because it interacts directly with the target population which is the youth and their environment. We believe this is a good policy consideration because if more emphasis is put on the community surrounding the youth then more precaution can be taken to protect the minors from doing things that are going to harm them.

Chapter 2: Age Requirements for Cannabis Products Sales

Lauren Hernandez, Ryan Rosenthal, Anani Shakir

Introduction

In 2021, New Jersey (NJ) legalized the sale, possession, and consumption of cannabis for adults 21 years of age or older. While cannabis offers medicinal and recreational benefits, excessive consumption can result in negative effects. For example, people can experience mild discomfort to severe impairment. Unlike adults, children lack intellectual reasoning that adults have to understand the risks associated with cannabis consumption, making accidental consumption more common. This legislation has created problems for schools and communities that send young children to hospitals because of cannabis poisoning (NJPSA). Recognizing this problem and providing solutions are important in preventing more harm to our children caused by cannabis poisoning. By prioritizing prevention, awareness, and medical intervention, we can reduce the number of cannabis poisonings in Paterson, NJ. There are three solutions that are effective in ending cannabis poisoning. We propose stricter security in stores that sell these products, limiting access in stores that market cannabis products, and educating seminars that would help inform the community affected.

History Behind Legalized Marijuana

Communities Organizing for Prevention and Empowerment (COPE) has reached out to Montclair State University to find a solution to children getting exposed to cannabis at a young age.

Stores are selling to children and young adults under the age of 21. In the past 30 days, 1 in 4 youth used marijuana and 1 in 6 youth became addicted to it. Cannabis poisonings have increased 1375% from 2017 to 2021. Ergo, this creates an increasing number of accidental ingestions among the pediatric population (P-CASA).

Solutions

1. Stricter Security

Following the legalization of cannabis in New Jersey, a range of restrictions and regulations were put in place to ensure responsible distribution of cannabis products. However, in Paterson, New Jersey, there has been a concerning disregard for one key regulation—preventing the sale and distribution of cannabis to individuals under the age of 18. Moreover, the city faces challenges with underfunded law enforcement, leading to a lack of robust enforcement measures.

Regarding the name stricter security, our aim is for businesses caught selling cannabis to minors to be fined, regulated, and possibly arrested or enclosed. Our proposal outlines a tiered approach aimed at deterring such illicit activities effectively. First and foremost, businesses found in violation of selling cannabis to minors would face significant fines commensurate with the severity of the offense. The fines are according to New Jersey State Law regarding Marijuana Sales for businesses: less than 1 oz would have a maximum jail time of 18 months, and a maximum fine of \$10,000, more than 1 oz would have a maximum jail time of 3-5 years, and a maximum fine of \$25,000. These fines would serve as a financial deterrent and a punitive measure to discourage

repeat violations. This dual approach of fines and incarceration sends a clear message that non-compliance with age restrictions will not be tolerated and carries serious consequences.

In tandem with these penalties, we advocate for the implementation of a robust monitoring system to track and shut down unpermitted cannabis stores near schools. This monitoring system would utilize a combination of technology, such as surveillance cameras, along with increased inspections and audits conducted by law enforcement agencies. The goal is to proactively identify unlicensed cannabis retailers operating in close proximity to educational institutions and swiftly take enforcement action to shut down these illegal operations.

Cities in New Jersey, including Newark, Jersey City and East Orange have operated similar camera networks since 2015. In Jersey City, there are two separate systems, with 131 cameras paid for with state money, and an additional 88 cameras paid for with Homeland Security grant money. The prices cost \$100,000 for installations, monitoring and upkeep, and if incorporated into Paterson would cost approximately the same price. The size and scope of Jersey City, as well as Newark, closely resemble Paterson, both economically and socially.

Furthermore, our proposal emphasizes the importance of community engagement and reporting mechanisms to supplement the monitoring efforts. We encourage residents, parents, and school personnel to report any suspicious or unauthorized cannabis sales establishments near schools promptly. This community-driven approach not only enhances the effectiveness of monitoring but also fosters a sense of collective responsibility in safeguarding youth against exposure to cannabis.

Regarding increased funding for law enforcement agencies, we propose allocating resources specifically earmarked for cannabis regulation and enforcement from local funding and from the BJA FY 2022 Connect and Protect: Law Enforcement Behavioral Health Response Grant Program. The City of Paterson was granted by the Bureau of Justice Assistance to support behavioral health cross-system collaboration to improve public health and safety responses and outcomes for individuals with mental health disorders, substance use disorders, and repeated substance use.

This funding would support the hiring of additional officers dedicated to overseeing compliance with cannabis laws, conducting regular inspections of cannabis businesses, and implementing initiatives aimed at deterring underage access to cannabis products. Additionally, a portion of this funding would be allocated towards training programs for law enforcement personnel on the nuances of cannabis regulations, detection methods for underage sales, and effective community policing strategies.

2. Limiting Access

After seeing C.O.P.E. 's proposal to the problem, it was clear to see that the shops selling marijuana products are giving under age people easy access to them. We propose limiting the access to these products, which means locking up the products that are on the sales floor, or keeping all products that contain marijuana behind the counter. This solution eliminates any opportunity that minors have to steal products containing marijuana. Also, it now allows store owners to have or keep a limited supply out in the shop, and makes it easier to keep track of how much product there

is. Store owners, or employees now can limit the amount of marijuana that is being purchased, but also makes it easier to keep track of where or who the products are being sold to.

3. Education Seminars

In addressing the critical issue of cannabis poisoning among minors, families, and schools, it is imperative to implement a comprehensive education strategy. Our proposal advocates for targeted seminars that bring awareness to the dangers of cannabis poisoning directly to the affected schools in Paterson, NJ. Building upon the successful launch of initiatives like L.E.A.D. (Law Enforcement Against Drugs) and the BJA FY 2022 Connect and Protect: Law Enforcement Behavioral Health Response Grant Program in Paterson, we propose an expansion of this educational course to encompass the entire Paterson community. By delivering impactful seminars at the grassroots level, we aim to empower schools, families, and individuals with the knowledge necessary to mitigate the risks associated with cannabis use, fostering a safer and more informed community.

While the proposal rightly addresses the critical issue of cannabis poisoning among minors and highlights the importance of education, there are aspects that warrant consideration. Firstly, the efficiency of the proposed seminars needs to be supported by evidence of their impact on behavior and awareness. This can be achieved through thorough research and evaluation methods, such as pre- and post-seminar surveys, focus groups, and longitudinal studies tracking changes in knowledge and behaviors over time. Additionally, a more detailed plan on seminar content, frequency, and engagement strategies would enhance the proposal's clarity and feasibility.

Furthermore, there is a pressing need to allocate more funds for education seminars targeting youth, families, and schools in Paterson, NJ. The BJA FY 2022 Connect and Protect: Law Enforcement Behavioral Health Response Grant Program allocated \$500,000 to the city of Paterson for partnerships with St. Joseph's Health as a Mental Health Agency to develop and implement a law enforcement-behavioral health co-response program. While this grant is crucial for addressing behavioral health issues and enhancing law enforcement capabilities, it is also essential to recognize the unique challenges posed by youth cannabis usage and the importance of targeted prevention efforts. Directing a portion of these funds towards educational seminars can significantly enhance awareness about the dangers of cannabis use among the youth population, ultimately contributing to a safer and more informed community. Investing in education is not only a proactive measure for preventing cannabis poisoning but also a cost-effective strategy that can reduce the long-term social and economic impact of substance abuse.

Evaluation of Solutions

1. Stricter Security Analysis

The effectiveness of stricter security measures can be gauged through various metrics, one of which is the number of youths admitted to hospitals for cannabis poisoning. By establishing criteria that elevate the standards of effectiveness in cannabis security, we can use statistics already published from local Paterson health organizations as well as data from NJ State Health Statistics

and develop a long-term analysis of them. These metrics will specifically measure the number of youths admitted to health centers for cannabis poisoning.

The data from P-CASA indicates a rise in youth cannabis consumption in Paterson. 25% of local youth report using marijuana in the past month, surpassing the county and state averages. Additionally, 45% find it easy to access marijuana, and 27% perceive it as risk-free. These findings, supported by JMIR Research showing 1 in 4 youths using marijuana recently, highlight the urgent need for stricter security measures.

It is important to note that assessing the impact of these stricter security policies requires long-term commitment and dedicated resources for data collection and analysis, it would also force the police department to collect and grade these surveys to evaluate feedback. Trends in youth cannabis consumption and hospital admissions for cannabis poisoning are not static, they change over time from outside factors, such as political and social trends. Therefore, continuous monitoring and analysis of data over an extended period are essential to accurately measure the effectiveness of the implemented policy.

The effectiveness of stricter security measures can also be gauged based on the number of cannabis products, licenses revoked, and money collected in fines. Additionally, we can track how effective the policy is by measuring health statistics related to cannabis poisonings in Paterson. According to CY2020 Substance Abuse Treatment Admissions at a Treatment Site in Passaic County, there were 379 arrests related to cannabis consumption among youths in the last 30 days,

accounting for 6% of the total admissions of 6,634. By comparing this data to data after policy implementation can show its effectiveness in lowering cannabis poisonings among youths.

We can also utilize long term surveys and data collection to measure the effectiveness of increased security measures by recording the number of youth cannabis arrests. A decrease in such arrests would signify a positive impact of the implemented policies on reducing underage access to cannabis. Additionally, tracking the number of cannabis products and licenses revoked through police raids serves as another crucial metric. Comparing the data of seized products and revoked licenses before and after implementing the proposed policy can help gauge its impact on illegal cannabis distribution and enhance overall security measures.

It is also insightful to consider statewide statistics for context. According to the NORML Research Organization's 2022 data, New Jersey had 261 cannabis sale arrests and 118 cannabis possession arrests. While this data provides a broader perspective, comparing these figures to Paterson can offer localized insights into cannabis possession and sales arrests within the city compared to the state average.

2. Limiting Access Analysis

The number of the youth who use marijuana that is under age is on the rise. While limiting access to the products may seem like a simple approach, it uses supplies that stores may not have, or may not have access to. If stores want to leave the products on the sales floor then it would require them to have a lock case to store the products in, along with a key to open the locks.

Multiple keys should be made so they have enough for all the store's employees. But, the second option that stores have is to keep it behind the counter. This would require more space and shelves to do so. It would also require someone to come in and to install or check to make sure the lock case or additional shelves have been secured.

This solution is cost effective, but will have no impact on the problem. Limiting access only stops minors from stealing the products, but this solution does not stop them from purchasing the products. Stopping minors from purchasing these products falls on the employees, and whether they decide to id them or not. An employee can still sell these products to minors even if they are locked up, or kept behind the counter.

3. Education Seminars Analysis

The effectiveness of Education Seminars can be gauged using the same long-term surveys mentioned in the Stricter Security Section. These surveys would assess youth and community attendance at these seminars and gather feedback via surveys distributed at these seminars. It is important to note this requires long-term commitment and dedicated resources for data collection and analysis, as in order to gauge the effectiveness over a long period of time it must be collected consistently to avoid outside factors skewing the data.

This policy is particularly cost-effective, as it doesn't require the establishment of new departments or hiring additional staff. It can be efficiently managed by Paterson's Law Enforcement Against Drugs (LEAD) company within the municipality. With an established curriculum in place,

there's no need to allocate extra funds for additional programs, making it highly cost-effective. Additionally, leveraging an established curriculum in these seminars offers several advantages. It ensures that the educational content is expertly crafted and evidence-based, enhancing its credibility and impact. Secondly, a structured curriculum allows for consistency and quality across multiple seminar sessions, ensuring that participants receive standardized information on youth marijuana use. This approach not only streamlines the process of creating educational seminars but also maximizes their potential for positive outcomes.

The common criteria used is effectiveness, cost efficiency, equity, and political feasibility. Effectiveness questions if the solution will actually achieve what we want it to. Efficiency is what a policy costs in relation to its expected benefits. Equity relates to who will reap from the benefits. This can also raise the question of are we overburdening a particular amount of people. Political feasibility has three components: public opinion (democracy), candidate platforms, and can be related to efficiency and equity. The end result is that an increased amount of authority will assist regulate how many store owners are selling marijuana products to children. This will also help in making children not want to buy these products if they see cameras and policemen in the store.

Table 2. Evaluation matrix

	Criterion 1: Effectiveness	Criterion 2: Cost efficiency	Criterion 3: Equity	Criterion 4: Political feasibility	Total
Policy 1: Law enforcement	4/5	2/5	4/5	4/5	14/20
Policy 2:	1/5	4/5	3/5	5/5	13/20
Education Seminars					
Policy 3: Limiting Accessing	1/5	4/5	3/5	3/5	11/20

We suggest that law enforcement is more effective because having a police force and having a heavily surveillance area will prevent children from having access to these products specifically marketed towards them. Communities suffering from poisonings will be appreciative of the efforts put in place to slow the poisonings down. Limiting access is not the most effective because cannabis products are meant for the younger generation to buy, you can still put products behind the counter and it will still be sold to young children because store owners are being irresponsible with their products. If there is more funding for surveillance cameras and authoritative forces, then children will be less likely to obtain these products and shop owners will be less inclined to sell them.

Recommendations

Our recommendation is to have stricter security in the stores that sell any products that contain marijuana. This recommendation would be adopted by the store owners and local police department. Police officers will do random checks, or just stop by the stores during their shift. They can check that employees are checking IDs, following the age requirement, but also give officers a chance to check that the stores have the right licenses to sell the product in the first place. If stores do not have licenses to even sell the product then all products will be seized by the police department. With stricter security minors will be unlikely to purchase or steal any products, due to the fear of being caught. More cameras should be added in the store, and near this entrance and exits. This is to keep track of how much product the store has but also where it is going. Cameras can also help spot theft or any attempt of theft that has been done by a customer. Also, helps with making sure the rules of the age requirement are being followed by store owners, and store employees.

Conclusion

In the state of New Jersey, we have an age requirement if you want to purchase or use any products that contain marijuana, that age is 21. But in the past few years the age requirement has not been enforced like it should be and people under the age of 21 have been able to gain access to it. A few ways to help reinforce the age requirement are holding educational seminars for parents and children about the dangers of marijuana. In addition, stricter security measures, and better

police procedures. But the one that is recommended would be limiting access to the products. This is the best one because it is the simplest, and the most effective. In doing this you are making the youth ask you for the product, so you are also taking away their option to steal the product. The funding for the police department will be funded by the parents, school systems, and the BFAFY 2022 Connect and Protect Law Enforcement Behavioral Health Grant Program allocated funding to police officers in underfunded communities. There will also be local funding for the police officers to spend more time making presents in stores.

Chapter 3: Educational Initiatives to Resolve the Marijuana Epidemic Among Youth in Paterson

Andrea Cadenas, Ashley Elizondo Ramos, Rachel Zlotnick

Introduction

In 2021, Governor Murphy signed the New Jersey Cannabis Regulatory Enforcement Assistance and Marketplace Modernization Act legalizing and regulating cannabis usage for adults 21 and older. Although recreational cannabis usage and purchases are permitted for adults over the age of 21, one of the most daunting issues regarding cannabis policies in Paterson is unrestricted cannabis accessibility to the youth. Since many of these illicit marijuana sellers operate in convenience stores and bodegas adjacent to schools, education-based solutions should be at the forefront of combatting substance abuse among school-age children. In alignment with COPE's mission to prevent substance abuse among minors and provide prevention activities for Paterson's youth, we propose three solutions to resolve the growing issue of illicit cannabis sales to minors which are instituting a School Resource Officer Program, introducing In-School rehabilitation and substance abuse programs, and advocating for yearly revisions to the New Jersey Memorandum of Agreement.

Description of the Problem

Paterson is a township located in Passaic County with a predominantly Latino and

African American population. This urban community is considered the third-largest city in New Jersey, with one of the worst poverty rates and substance abuse rates in the state (Opara, Leonard, et al, 2021). Palpably, the extent to which cannabis negatively affects the population of minors is considerable where 1 in 4 youth in Paterson used cannabis in the last 3 days, 1 in 6 youth found themselves addicted to cannabis, and at least 45% of Paterson's youth admitted the ease in which they could obtain cannabis. Between 2017 and 2021, there was a 1375% increase in marijuana use among youth (P-CASA), reflected in the doubling of cannabis-related poison control calls in New Jersey within the last four years (Chung, 2023).

Access to Marijuana

In the last few years, cannabis has been camouflaged by bright, colorful, and animated packaging emulating popular candy/snack-like products, potentially contributing to a boost of curiosity and confusion among adolescents. Due to inadequate distance gaps between cannabis retailers and schools, school-age children are increasingly exposed to cannabis products masquerading as children's snacks. Education systems are extremely wary of marijuana usage among students because of its both short-term and long-lasting effects on sexual behavior, permanent damage to the brain, mental health, and addiction (Murdocco, 2023) that can implicate a student's ability to learn and participate in school.

Quality and Reliability

The Marijuana Legalization and School Policy disclosed that THC levels in cannabis and marijuana products, such as vapes and edibles, are much higher than they used to be. Presently, marijuana products contain THC levels between 50-80% compared to 3% in the 1970s (2023). This can explain the preference of adolescents to use other methods of ingesting marijuana such as edibles, weed pens, and vapes over traditional cannabis consumption (2023). Based on the vagueness of marijuana policies demonstrated in the Federal Hemp farming bill, products composed of delta 8, 10, and THC-O continue to be sold legally in New Jersey, unsupervised by the FDA, with similar effects and health risks to cannabis (2023).

Possible Solutions

1. School Resource Officer Program

The National Association of School Resource Officers is an association that provides police officers with proper training to work closely with Paterson youth on cyber safety, violence prevention, child trauma, substance abuse, and much more. School Resource officers are generally retired officers trained to enforce the law and mitigate violence in schools (Sawchuk, 2021). They are qualified in response training and educating the youth through counseling and educational seminars.

Funding for an SRO program would be received from a federal grant from the COPS in Schools program initially verified by the Federal Office of Community-Oriented Policing Services. The CIS has been able to award roughly \$715 million to more than 2,900 law enforcement agencies

successfully hiring over 6,300 SROs since 2004 (US Department of Justice, 2024). An effective SRO program should be able to partner with school administrators to implement a hands-on approach to prevent school violence and improve student safety through educational programs and seminars (US Department of Justice, 2024). Applicants eligible to apply for this grant are township, city, county, and state governments who demonstrate the inability to invest in a program without federal funding (Federal Grants, 2019).

2. In-school rehabilitation and substance abuse programs

Many educators recognize the education system's lack of well-trained professionals or substance abuse programs in schools with the tools to guide, inform, and support children with substance abuse problems, especially after the pandemic. Schools regularly lack the resources to assist students in the correct ways. Particularly, 87.5% of Paterson's population are minorities (U.S. Census Bureau, 2023), validating how important school programs like Too Good for Drugs are in aiding minorities with marijuana abuse issues unable to bear costs in private treatment programs or who have cultural and language barriers to proper care and access to quality information (Murdocco, 2023). This program can be utilized to teach youth about making healthy choices, the effects of substance abuse on the body, and resisting peer pressure. Studies have proven that programs similar to Too Good for Drugs have been shown to drastically reduce the amount of drug and alcohol use in a 30-day period, and increase resiliency (Bacon et al, 2013).

3. Revision of the Memorandum of Agreement

Educators and law enforcement have overlooked how impactful their actions and cooperation can be to the community in terms of determining how much attention is directed toward marijuana usage among adolescents. The Memorandum of Agreement, known as the MOA, is a New Jersey agreement between educators and law enforcement officials that aims to protect educational settings across the states by tackling issues troubling school-age children (New Jersey Department of Education, 2023). The MOA's most recent revisions were welcomed in 2023, nullifying the MOA of 2019. Revisions were made to update the definition of marijuana and cannabis and mandatory reporting, address changes to medical cannabis policy, explain police procedures of interactions with students possessing cannabis, and clarify all articles with mentions of cannabis. Such a document would help better outline a shared objective between law enforcement and educators, be a tool for improved coordination, facilitate roles and responsibilities between each party, and allocate resources jointly for better outcomes. It would also help identify methods already implemented and ones currently under discussion to recognize their content and effectiveness.

Evaluation of Solutions

Table 3. Evaluation matrix

Criteria: → Solutions:	Cost Efficiency	Implementation feasibility	Effectiveness	Equity	Total
Policy #1: SRO Programs	4/5	3/5	4/5	4/5	15/20
Policy #2: Education Programs	2/5	3/5	3/5	2/5	10/20
Policy #3: Revising the MoA	4/5	2/5	2/5	3/5	11/20

It is important to note, that the matrix provides a grading criterion with each criterion being out of 5. The criteria we utilized were cost-efficiency, implementation feasibility, effectiveness, and equity, leading to a total of 20 points. The first solution we proposed was incorporating a School Resource officer program in Paterson Public Schools. Individually, it would cost about \$89,311 for each SRO (ERI, 2024), but the CIS program's maximum contribution of \$125,000 per officer (Federal Grants, 2019). Although it is a costly measure, this federal grant would provide the financial means to sponsor this educational program. As for implementation feasibility and effectiveness, a program that encourages police enforcement in schools in schools educating a large minority population may

experience some pushback from students and parents afraid of the school-to-prison pipeline.

However, SROs are only meant to use violence as a last resort and must rely on their counseling and teaching capabilities first. In terms of equity, schools can benefit from the long-term connections between students and SROs, but this program can experience obstacles when dealing with its application to different groups of students.

When analyzing in-school K-12 education programs, we ranked it a 9/10. To be more detailed, since these programs have been used in the past, there may not be much of an interest to be investing in. Not to mention, cost-efficiency would rank pretty low because there would need to be several actors involved to accomplish a program of this kind, so roles and responsibilities can overlap leading to wasted money, resources, and time. It may not also guarantee that all students will reap benefits from a program intended for students trying to overcome substance abuse and addiction, which can pose questions about whether enough students are truly utilizing this program.

Lastly, the Revision of the Memorandum Agreement received an 11/20. In terms of cost-effectiveness, this agreement most likely already has funding set aside to achieve the goals established in it. Since the document is not revised yearly however, revisions were only witness in 1992, 1999, 2007, 2011, and 2015. Thus, the efficiency of this policy ranks low because revisions are not authorized every year as they should be to continually address new concerns rising within a year. Additionally, the MOA tends to prioritize one issue at a time. In other words, revisions can be directed to improve one issue at a time, yet neglect the imperativeness of solving more than one problem at once, especially in an underprivileged city like Paterson.

Recommendation

Even though the Memorandum of Agreement did not rank the highest when evaluating all of these solutions, we concur that is the most overlooked and cost-efficient solution of all three yet can have a substantial effect when looking to join forces and combine resources. For example, in 2011, the MOA revised this year had a large Anti-bullying component that prioritized preventing, investigating, reporting, and responding to incidents of bullying (DLPS, 2011). A large part of this revision was based on extensive research on the side effects of bullying which include suicide, psychological problems, poor achievement and concentration in school, depression, and the list goes on (DLPS, 2011). With this Anti-bullying Act, although it only concentrated its attention and resources to one problem, it allows education systems to witness full success with one problem, rather than providing temporary fixes for a plethora of issues. The 2011 MOA altered previous provisions, and that year teachers were given the authority to complete harassment, intimidation, and bullying investigations within 10 school days, enforcing accuracy in reports and expanding the roles of teachers in investigative procedures to remain in constant cooperation with law enforcement.

Police officers are also required to notify school principals when a student or student's guardian reports to the police of incidents when bullying or harassment occurs. This stance can be applied with cannabis in place of bullying. Educators can have roles in reporting cannabis incidents among students. Law enforcement can have responsibilities, explained in the MOA, of patrolling around and nearby schools, in constant and direct communication with educators about number of

reports filed monthly, and grouping similar files together to assess which students are more susceptible to marijuana based on previous records of marijuana incidents or previous behavioral issues in school.

The only issue with MOAs is the management component. This agreement must be renewed annually because new barriers are always transpiring even when it seems like a problem has been fixed. The MOA could have had an impact in counties and towns overwhelmed by bullying, but the emergence of different types of harassment such as cyber-bullying or hate crimes are not touched on in the MOA. This agreement must be willing to adapt to the times and acknowledge various factors in one colossal issue.

Conclusion

When confronting issues in a community with a vulnerable and high minority population, there is an even greater risk of exposure to marijuana. For this reason, legitimate solutions need to be suggested in townships lacking the resources to help vulnerable populations like the youth. Finding solutions to problems through legislation can be difficult and time-consuming. With that being said, the Memorandum of Agreement is a document already in effect, all that is needed is a maintenance policy and commitment to seeking solutions after pinpointing the problems and their factors. Using school-based approaches can assist in reaching a wide array of youth who are implicated because of easy access to marijuana, and by fostering cooperation between educators and law enforcement, there can be a strategic plan for understanding which kids are more vulnerable and how we can prevent drug abuse and sales in or near school grounds.

Chapter 4: Cannabis Products Packaging

Jenna Anevski, Daniela Calderon, Brian Martinez, Thavma Mutambalilo

Introduction

In Paterson, New Jersey, a concerning issue resides within the city: the illicit sale of marijuana products, amplified by the copycat packaging habits from marijuana manufacturers. Packages are being mistaken for normal products that would not traditionally contain marijuana and are poisoning not only adults but also the youth (COPE Presentation, 2024). This market goes against the goal of eliminating substance misuse and is problematic for public health and safety. An alarming report from 2022 states that one in four children have used marijuana in the previous 30 days, with one in six of those users entering into an addiction cycle. In a study done by COPE, “in 58 stores in Paterson ranging from Broadway, Main Street, and Union Ave, over 31% of the stores contained youth-orientated signage and advertisement” (COPE Presentation, 2024). In this case, we delve into the challenges that are being posed by these illicit marijuana packages and explore different interventions, including educational campaigns, regulatory measures, and access restrictions inside the carriers. By doing this we are aiming towards more precautionous marijuana sales leading to a safer and healthier community.

The Problem at Hand

The main problem needed to be solved in Paterson, New Jersey is the youth's access to marijuana products that can easily be mistaken for regular food products. This is an ongoing problem due to three reasons; marijuana is an addictive product, the locations at which these products are sold is easily accessible to the youth, and the packaging of some marijuana products are extremely similar to non-cannabis foods.

This problem mainly affects many high school students across Paterson. One in 4 of the youth have used marijuana in the past 30 days, and 1 in 6 youth have become addicted. These statistics show the urgency of the problem being presented. Underage consumption of marijuana can lead to a lifetime addiction, impairing someone from doing day-to-day activities. According to the NIH, "People who begin using marijuana before the age of 18 are four to seven times more likely to develop a marijuana use disorder than adults" (NIH, 2021, 1). The effects of the early use of marijuana can extend well into the adulthood of the children of Paterson, limiting their future opportunities and overall, making their lives much more difficult.

Those in Paterson can easily become addicted to marijuana due to the large amount of exposure there is of it. Over 40 stores in Paterson surveyed by COPE sell marijuana products. This includes mini markets, bodegas, and smoke shops (COPE Presentation, 2024). Some of these are even located near schools, making it a location of easy access for the youth. These marijuana products can be picked up by customers easily because they are not found behind the counter, instead they are

placed all around the store in easy reach for anyone to grab. This encourages experimentation amongst adolescents by normalizing its presence.

These products are packaged similarly to regular food products such as different cereals, candies, or cookies. These cannabis infused edibles are easily appealing to youth with these features, increasing the chances of them purchasing and indulging, either on purpose or by accident. Although state law requires labels to be put on these products to inform people of the amounts of THC, these labels are extremely small and can be easily missed, especially if the package at first glance appears to be that of a regular snack. There is no law that states the size that the label must be (Packaging and Labeling Guide, 2024, p. 13). New Jersey law already requires that cannabis product advertisements not be appealing to minors in a manner that attempts to persuade them to participate in illegal activity, or risks public health and safety (Personal Use Cannabis Rules, 2023, p. 78). It is clear that with the lack of enforcement of this law, the city of Paterson has become victim to misleading and deceptive packaging. Of 58 stores located between Broadway, Main Street, and Union Avenue, 30% of them sold marijuana products. The entirety of that 30% also sold products with youth-oriented signage and advertisements (COPE, 2024).

Possible Solutions

1. Educational campaigns

While product packaging is a significant issue in the illicit marijuana sales in Paterson, not everyone in the city is aware of this problem. According to the NIH, "Public education campaigns are effective at changing health-related attitudes, beliefs, social norms, and behaviors, especially for

preventing tobacco use among young persons" (Delahanty, 2020, 1). Youths and children who do not intend to consume edibles available in stores are deceived into purchasing them due to the lack of knowledge on which substance contains marijuana and which product is an actual snack. Therefore, hosting educational campaigns in schools organized by teachers addressing the issue to the youths and showing them the differences between regular snacks and misleading products that may look similar but contain marijuana will help youths and children be cautious and ensure they are not misled into buying products that contain marijuana.

Additionally, educational campaigns supported by organizations such as the Paterson Prevention Program, which is a nonprofit organization addressing the problem of substance abuse consisting of leaders from various educational systems, law enforcement agencies, business communities, and the local government, may host programs that allow parents, youths, children, shop owners to know the severity of the problem. These campaigns may be done by issuing poster signs that differentiate regular FDA-approved snacks on the market and marijuana products on various streets in Paterson close to schools and shops that may have these marijuana products and given to youths occasionally.

The clients in this campaign will be COPE, who will advocate for stricter penalties and awareness concerning the packaging. This campaign would include regular visits to various schools in Paterson, showing the students what to look out for in stores and the consequences of consuming these products; they would contact the board of education, who would allow these campaigns and then work collaboratively with principals from schools in Paterson. The Paterson Prevention Project

would also support COPE by conducting surveys and interviews to support the campaigns. The youths in Paterson will also play a role in disseminating information and creating awareness, allowing fellow youths and children not to be misled into consuming products that may cause harm. Additionally, COPE can also work with the city council of Paterson and hold public meetings with the residents of Paterson. The city of Paterson can have constituents' nights where COPE would present the problem to the residents of Paterson and inform them about the consequences of illicit sales of marijuana products in the city.

2. Enforce a Change Packaging

Determining actors involved in the product packaging will help identify ways to improve efficient packaging. The actors involved in regulating these products include the State responsible for maintaining consistency in product labeling, thereby protecting consumers from harmful products; commissions such as the New Jersey Cannabis Regulatory Commission, responsible for enforcing rules that govern the purchasing of marijuana products; the Food and Drug Administration (FDA) responsible for protecting public health by regulating ingredients found in this product and approving packaging, dispensaries such as Curaleaf and Cresco labs that manufacture these products and various nonprofit organizations such as COPE that advocate for people in cities like Paterson concerning the packaging problem.

While the Cannabis Regulatory Commission requires all products purchased in New Jersey to be in opaque, fully enclosed, resealable, child-resistant packaging (N.J. Admin. Code § 17:30-16.2,

2023), various stores in Paterson that sell edibles on the market are in similar packages to FDA-approved snacks enticing children to purchase these products. Therefore, the State would step in by enforcing stricter penalties on stores found selling marijuana products in similar packages to those on the market. COPE advocates for more stringent penalties and laws; they also contact the city council, following an ordinance that Congress will debate and draft if approved.

Furthermore, all packages containing these products should clearly state the THC content and name on the labels, as failure to adhere to these requirements causes risks to the manufacturer, such as losing their license to sell these products. On July 18, 2022, a report indicated that Curaleaf, a familiar dispensary in New Jersey, risked losing its license when they were found to have manufactured products without labels, which bore the results of a third-party Lab as that is a requirement according to the New Jersey Regulatory Commission (CRC, 2022). Therefore, the New Jersey Regulatory Commission warned Curaleaf to get their products tested by a third-party lab and discouraged them from selling products that do not adhere to packaging requirements. However, no fine was imposed, and they kept their license. This shows that there is leniency towards dispensaries due to the lack of stricter penalties, and laws on packaging are less severe, causing a lack of adherence to quality standards. However, if enforcement found Local stores selling these products, they would not be as lenient because local stores are not allowed to sell these products. According to the New Jersey Cannabis Regulatory Commission, adults may only obtain these products from licensed dispensaries (NJRC,2024).

3. Marijuana products are to be stored behind the counter

Due to the availability of products containing marijuana, separating the regular snacks from the ones that contain marijuana would help avoid easy access by youths and children to these products. Firstly, COPE would navigate the possible solutions and contact the City Council of Paterson about the problem and the solution of storing all products behind the counter. Once the solution is brought to the City Council a council member will draft the ordinance which will pass to the city's legal department with a wait time of approximately 25 days to challenge the ordinance, after 25 days of no opposition the law will be effective. Therefore, storing them behind the counter would accompany the use of IDs upon purchasing these products which will limit the intake and prevent children from accessing edibles in stores. Once these products are behind the counter, marijuana overdosing, and child poisoning will be reduced in the city of Paterson because availability will be limited and a distinction between these products will be feasible as people will not have to worry about getting the wrong product and safety will improve for children. Therefore, the same policies that require the purchasing of alcohol and tobacco on the market should also be applied on the products containing marijuana.

Evaluation

One of the solutions our team has proposed is that COPE works with Paterson's public schools to make educational videos about the effects of marijuana. Teenagers can be misinformed about the consequences of smoking marijuana. Teenagers see how grocery stores and smoke shops

have colorful marijuana products on their counters, with logos of common brands, and they might think that those products are safe. It is sometimes difficult to distinguish between THC marijuana products and regular packs of candy bars. For this reason, the Federal Trade Commission sent out demand letters in 2023 to marijuana companies that use similar packaging to food to stop their deceptive packaging. According to the Federal Trade Commission, “Marketing edible THC products that can be easily mistaken by children for regular foods is reckless and illegal,” said Samuel Levine, Director of the FTC’s Bureau of Consumer Protection. “Companies must ensure that their products are marketed safely and responsibly, especially when it comes to protecting the well-being of children” (FTC, n.d., 1). If you see the labeling of illegal marijuana products and the labeling of cereal brands, the packaging is not that much different, leaving room for error and misconception from the consumer’s perspective.

After the demand letters were sent, companies used alternative colorful packages that were legal but that still targeted minors. Companies use colors to attract consumers to buy their products, and if marijuana manufacturers use colorful packaging with cartoon characters, they are still manipulating teenagers even if it doesn’t infringe any copyright laws.

COPE can also work with Paterson’s city council to alert the store owners of the illegal marijuana products that are being sold throughout the city. Many store owners may not know that the sale of illicit marijuana products is illegal. The six companies that the FTC and FDA have determined are illegally selling marijuana products are Delta Munchies LLC, Exclusive Hemp Farms, North Carolina Hemp Exchange LLC, Dr. Smoke LLC, Nikte’s Wholesale LLC, and the Hunted Vapor

Room. If store owners become aware of the companies that have been warned that their products are illegal, the store owners may stop buying products from those companies. After the conclusion of the educational campaign, we expect the number of illegal marijuana packaging products for sale in dispensaries and grocery stores to diminish. The criteria COPE can look at to determine if the solution is working is the number of illegal marijuana products being sold throughout Paterson.

Many stores that sell marijuana products make it easily accessible for teenagers to grab by having these products over the counter. If a teenager grabs a THC product that looks like a Dorito bag and the store owner sells it unaware that it is a marijuana product, the teenager has just been exposed to THC levels that can be harmful to them. By having products behind the counter, individuals buying marijuana products will have to request them, making the store owner aware that they must be 21 years of age or older and having the store owner check an ID before selling the products. Having marijuana products behind the counter can help deter teenagers and children from trying to buy the product because they know that the store owner or store rep will ask to see their ID. Having an extra barrier will help limit teenagers' access to marijuana products. Currently, in New Jersey, you must be 21 years of age or older to enter a dispensary. Anyone can enter grocery stores, but if COPE presents Paterson's city council with an ordinance that states that all marijuana products sold in the city must be behind the counter, teenagers and families won't have to worry about their children having access to marijuana products.

We have seen the success of putting barriers in place for other drugs and alcohol in the country. In 2018, Congress passed a federal law raising the age of tobacco purchase across the

country to 21. Before this law, in New Jersey and other states, the age limit was 19. Before and after the implementation of the 21+ law in the United States, the National Institute of Health conducted compliance check studies in Columbus, OH. Their study determined that “Among the sample of 91 retailers where tobacco purchases were made at both time points, 39% conducted ID checks in summer 2017 and 78% conducted ID checks in summer 2018. This increase in compliance was statistically significant” (Roberts, 2021, 1). This quote demonstrates that following the implementation of a new law, retailers increased the number of ID checks in their stores. If Paterson implements a behind-the-counter law for marijuana products, we expect the number of ID checks in stores across the city to increase.

In a conversation between Councilman Luis Velez and our members, Mr. Velez stated that he was open to listening to the concerns of the public and possibly proposing a new ordinance in the city that keeps the children of Paterson safe. To propose a new law in Paterson, a council member must draft the ordinance, which would then need to pass the city’s legal department and wait 25 days to see if anyone challenges the ordinance. Councilman Velez stated that no city ordinance can supersede state law, and if no one challenges the new ordinance, then the law will be in effect (L. Velez, personal communication, April 2024). Mr. Velez, in our conversation, stated his willingness to help in this situation. Improving the quality of life for the residents of Paterson is his top priority, and, as we know, the illegal sales of marijuana products to minors affect the quality of life of parents and teenagers in the city. COPE can survey children in Paterson's public schools before the ordinance and after the ordinance to see if the number of teenagers using marijuana products has declined.

The Federal Trade Commission and the FDA have already warned six companies that their packaging is illegal. The six companies removed their products that copied snack packaging from their websites. According to the Washington Post, “Diane Becker, North Carolina Hemp Exchange company’s manager, said the company removed four products from its website as instructed” (Heil, 2023, 1). The FTC can look into other THC companies that are using deceptive packaging and send them warning letters to stop illegal packaging. THC companies would need to remove their illicit products from the market. The number of illicit marijuana products sold in Paterson should decline after the removal of illegal packaging from stores.

Table 4. Evaluation matrix

Solutions	Efficiency	Feasibility	Cost effectiveness	Total
Educational campaigns	1/3	3/3	3/3	7/9
Change Packaging	3/3	1/3	1/3	5/9
Selling behind the counter	2/3	3/3	3/3	8/9

Each of the three policy solutions were given a rating out of three based on three different criteria; efficiency, feasibility, and cost effectiveness. For our first solution, the educational campaign to bring awareness throughout the city, we concluded that an educational campaign would be cost effective for the community. In Paterson, there are 7 public high schools. If COPE sends two

representatives a day and they visit 2 schools in a day, by the end of a week they would reach all the high schools in the city and spread the word to thousands of high school students. An educational campaign would need the cooperation of the community and can be done in schools, city hall events and it would just require COPE to come into the schools and alert the public of the problem. COPE would need to put time into the events but in one week they could finish their campaign across all the public high schools in Paterson.

An educational campaign is practical, many juniors and seniors in high school have study halls, or free classes where they can attend COPE's educational campaign without disrupting their class schedule. Members of the community already attend city events so the community would also be open to participate with city officials and COPE to tackle this issue. The only problem with this solution is the efficiency. We can advocate and educate the community to stay away from these products but it is ultimately their personal decisions on whether or not they want to use those products and sell those products in terms of the grocery store and smoke shop owners.

The second solution that called for a change in packaging had the least points. Making it mandatory for marijuana products to have to distinguish their packaging from regular food products would directly stop the youth from being misled, however, it is the solution with the least amount of feasibility. The actors involved may not comply even with this law especially if it isn't enforced. It could also take a longer amount of time for this kind of law to be enacted. This kind of change would also require a large cost to store owners, dispensaries, and manufacturers, as they will need to remove the products with illicit packaging therefore, losing revenue so it is not the most cost effective.

The third solution is the implementation of making it mandatory for products which contain marijuana products to be sold strictly behind the counter. We concluded that if the items are sold behind the counter it will then prevent the youth or adults from mistaking the products in the specific packaging for a normal product that typically would not contain any THC. Additionally, the youth would not be allowed to serve any of these products as they would need to be of age and provide ID. As stated earlier, with a new ordinance in place we expected an increase in ID checks across Paterson, the same way that it occurred in Columbus, OH.

Recommendation

After looking at all the possible solutions, we believe that advocating for a new law in Paterson that states that all marijuana products sold in Paterson need to be sold behind the counter is the best solution for COPE. Advocating a new ordinance that won't cost anyone a single dollar is something officials in Paterson will listen to. When Paterson implements this new law, grocery stores, mini markets and smoke shops will just need to advertise their profits from afar. Having products behind the counter will add an additional barrier to minors in Paterson. Smoke shop and grocery store owners or workers will know that if someone asks them to purchase a marijuana product, they will need to check an ID before selling the product. An ordinance stating that marijuana products need to be sold behind the counter is a short-term solution that can save children from being exposed to harmful chemicals.

Conclusion

The landscape of marijuana sales in Paterson, New Jersey, is occurring by a troubling reality: the widespread presence of illicit marijuana products disguised within misleading packaging. These packages, often indistinguishable from ordinary items, pose a significant threat to public health and safety, leading to unintended consumption and potential addiction among both adults and youth. One in four children in Paterson reported having used marijuana within the past month, and a concerning one in six of these young users fell into the grips of addiction.

Through our exploration of potential interventions, including educational campaigns, regulatory measures, and access restrictions within the packaging itself, we have aimed to confront these challenges head-on. A thorough analysis emphasizes the need for a variety of approaches to combat illegal marijuana sales in Paterson. Policymakers can successfully limit youth access and decrease the public health hazards associated with misleading marketing methods by enforcing behind-the-counter laws. By leveraging collaborative efforts between the community, stakeholders, and official entities, long-term solutions can be implemented to promote a safer and more responsible cannabis marketplace in the city.

Chapter 5: Product Origin of Illegal Cannabis

Hans Medina, Gloria Morales-Chiaro, Kristen Lorente

Introduction

One aspect of this issue that requires a greater amount of insight to act on is how offending businesses source their marijuana products. There is evidence to suggest that the vast majority of marijuana products sold in unlicensed establishments exist in a strange legal gray area that must be addressed statewide if restricting youth access to marijuana is the goal. The presence of semi-professional packaging, the variety of products on offer, and pricing that is not subject to New Jersey's marijuana taxation make these illegal market options attractive to the average consumer. The origin of these products becomes an issue for several reasons that relate to the rise in child marijuana poisoning cases. As long as illegal markets products exist in sufficient amounts without a public effort to curtail them by state and local governments, it is likely that children living in close proximity to where these products are sold will continue to have access to them.

There are three main policy vectors to consider when tackling this issue: education-based prevention, enforcement-related solutions, and legal/political solutions. Prevention deals with the underlying motivations that cause underage youth to seek out and attempt to purchase cannabis products and addresses these root causes. The goal of enforcement-based solutions is to utilize law enforcement and community resources to prevent the continued sale of illegal marijuana products. Our political solution focuses on fixing the legal loopholes that exist around cannabis policy and

addresses them through legislation. Communities Organizing for Prevention and Empowerment (COPE) offers social services to the city of Paterson, which include presentations and workshops regarding the dangers and risks of using marijuana and vaping products (COPE 2024). While COPE can directly oversee solutions regarding drug and cannabis poisoning prevention, macro issues regarding the curtailment of marijuana products require police enforcement and intervention.

The Cannabis Ecosystem In New Jersey And Illegal Marijuana

Background around the economics of cannabis in New Jersey is necessary to establish for several reasons. Firstly, black market products are not subject to New Jersey laws around taxation, agriculture, packaging, and regulations around the creation of THC/CBD processed from these plants. Secondly, it is important to establish the rate at which the industry is growing in order to put the urgency of the issue into context.

Recreational cannabis began to be sold in New Jersey in the spring of 2023. It is subject to two different types of taxes under NJ law, the Sales Tax and the Social Equity Excise Fee (SEEF). Individual municipalities also have the power to impose a third tax, the Local Cannabis Transfer tax, if they wish to gain revenue from local dispensaries. Paterson's current Local Cannabis Transfer tax is set at 2%. The current SEEF for recreational cannabis is \$1.24 per ounce sold. These fees and taxes are what makes legal cannabis from licensed dispensaries significantly more expensive to sell compared to unlicensed businesses selling illegal or unlicensed marijuana. Legal dispensaries have been struggling to keep up with the high demand for recreational cannabis in the state, leading to a rise of unlicensed growers and sellers. The state bureau in charge of marijuana

regulation within New Jersey, the Cannabis Regulatory Commission, has attempted to curtail the problem by increasing the amount of Class I grower licenses being granted to independent farms. (NJCRC 2023) Cannabis licensing in New Jersey is broken down into different classifications based on the supply chain these products go through to get to the end consumer. Other examples of these licenses are Class II Manufacturer licenses and Class V Cannabis retailer licenses. These licensing regulations will be important when discussing statewide reforms.

This background is important as individual boroughs have a large amount of discretion and leeway as to how much they allow the cannabis industry to affect their communities. Illegal products are still being sold in various businesses across the state, including in Paterson. The policy considerations are different in communities that allow legal dispensaries and sales of smoking alternatives such as vaping and e-cigarettes.

The Origin and Production of Illegal Marijuana

The point of origin of illegal market marijuana traces back to the 2018 Farm Bill passed by the federal government. Part of that bill were amendments that legally exempted hemp from the Controlled Substances Act Schedule as long as its THC content is less than 0.3%. (cite bill or articles) This means that anyone with the knowledge can grow, transport, and process hemp and hemp-based products legally without federal government intervention or fear of arrest. The DEA has technically ruled that Delta-8 THC . Patents have existed since 2004 detailing various processes for synthesizing different types of THC from hemp based cannabidiol (CBD)(USPO). These patents were

originally meant to be applied in the medical industry, but the methods can be reproduced cheaply with a wide range of publicly available chemical compounds.

While there is a large amount of information about the legal supply of marijuana, which will be discussed, there is a distinct lack of research-based evidence regarding specific sourcing of illegal marijuana products. A cursory review of open-source discussion on forums and social media reveals that there may be a plethora of different sources for these products, such as unlicensed farms without Class I Cultivator permits, surplus from medical marijuana manufacturers, and recreational dispensaries among other sources. This intelligence is valuable for generating ideas but is not sufficient enough to make meaningful decisions about how to prevent illegal or unregulated sources of marijuana statewide from getting into the hands of youth. A more localized and data-driven solution will likely be necessary. Regardless, there are some important clues in government sources to point us in the correct direction.

As marijuana is still technically federally illegal and a Class I controlled substance according to the Controlled Substances Act, the Drug Enforcement Administration (DEA) records data on illegal marijuana seizures in almost every state, as part of their Domestic Cannabis Eradication program. In 2022, one year before the recreation market was officially open in New Jersey, the DEA shut down a total of 4 illegal marijuana growing operations within the state and seized a total of 21 illegally cultivated plants. (DEA 2022). West Virginia, a close state to New Jersey, had a total of 130 illegal operations destroyed and 49,784 plants seized. California, a legal marijuana state, has data that is extremely concerning. In 2022, the DEA seized a total of over 4 million unlicensed marijuana plants in the state (DEA). This data is crucial, as it shows that while marijuana is still technically illegal to grow and cultivate without a license in New Jersey, illegal growing operations inside of the state are

not a major source of supply. Given the data on seizure in other states, however, two conclusions can be drawn that have extreme consequences for the future of New Jersey's marijuana industry. The first, and most concerning, is that the black market within New Jersey may grow at a similar rate to California's if efforts are not made by the state government to control supply. The second implication is that a significant portion of illegal marijuana products may be imported to the state from out-of-state cultivators. This can be done through land travel by vehicles or through seaports.

The danger that illegal market products pose to children is clear and easy to demonstrate with data. The product example pictures shown by COPE suggest a prevalence of DELTA-8 THC products sold in local stores. (COPE 2024) An FDA report cites Delta-8 products as dangerous because of the way it is manufactured: "the natural amount of delta-8 THC in hemp is very low, and additional chemicals are needed to convert other cannabinoids in hemp, like CBD, into delta-8 THC...The final delta-8 THC product may have potentially harmful by-products (contaminants) due to the chemicals used in the process," (Commissioner 2022) Delta-8 and other marijuana products are likely a contributing factor in the rise of marijuana poisonings in minors. (Myron et. al 2022).

Solutions

Solutions to this problem depend on how willing communities like Paterson and the state at large are to commit resources to handle the issue. Several solutions will be presented that COPE will be able to either implement directly or work with community partners (schools, parents, law enforcement) to implement. Other solutions will require an advocacy plan and require legislation and/or funding to implement effectively.

1. Delta-8 Recategorization And Licensing Restrictions

There are two primary reasons for the sharp increase in the popularity of Delta-8 THC products: availability and price. The recreational cannabis price compared to other legal states such as Oregon (\$4 per gram versus \$10 per gram in New Jersey) is extremely high (OLCC 2023). According to industry leaders within New Jersey, this price point will remain the only price point until more cultivators are licensed to grow legal cannabis (Valada 2024). The public is often sensitive to price changes and sees price before they see other factors (Muñoz 2024). Consumers may overlook factors like product quality, hazard testing, and packaging that attracts youth to edible marijuana products.

The other side of the coin is availability. Due to the lack of regulation of hemp-based cannabinoids, these products can be produced and sold with relative impunity within New Jersey. Delta-8 products have been found in gas stations, bodegas, convenience stores within Paterson and throughout the state (COPE 2024). Individual municipalities have enacted laws that can relieve pressure off of the problem, such as Howell Township, NJ restricting the sale of vapes entirely within their jurisdiction, which is a major category of Delta-8 products (ORDINANCE 23-8 2024). This approach is likely not the most effective, as the widespread availability of Delta-8 products make laws enacted by individual towns easy to work around by consumers. It is possible to simply travel to a neighboring town that has friendlier cannabis laws and easily obtain Delta-8 products. The primary issue with such a large and uncontrolled black market is that these vendors are much less inclined to strictly follow laws around age requirements for buying cannabis if they are not under threat of

losing any business licenses. This means that the availability of Delta-8 infused edibles and vapes can extend to persons under the age of 21, including middle and high-school students.

The most effective solution to stopping the unregulated Delta-8 market is to categorize Delta-8 and other hemp-based synthetic cannabinoids in the same legal category as their natural counterpart, Delta-9 THC. There are several reasons why this would be effective. The first is that Delta-8 producers would be legally required to obtain Class I or II CRC licenses and be subject to state regulations around product testing. This would deal a significant blow to the black market and move much of the cannabis industry to legal establishments that are much more likely to follow age requirement laws closely.

2. Education to Break Public Perception of Delta-8 THC

COPE's social work efforts can be expanded to address core issues. Their current efforts involve “workshops and presentations regarding vaping and marijuana” (COPE 2024). An important addition to their curriculum of drug-related education should be on the dangers that specifically Delta-8 THC products can have to young people. As these products exist in a legal gray area with very few barriers to entry, there are many potential dangers COPE can highlight in their educational materials, such as cross-contamination with fentanyl and other hazardous narcotics. Along with that they can do presentations to educate the parents of these youths. COPE tries to visit at least one school in Paterson each month, this can give the students and their parents a better understanding of the dangers and what to look out for to make sure they're not consuming marijuana products through things like edible marijuana. COPE's presentations also allow for educators, principles, and

faculty members to become more aware of what to look out for if students have suspected marijuana products with them in school. This is because marijuana products are ever changing and it's important that adults are aware of what students may be in possession of while at school or at home.

The prevalence and danger of hemp-based THC products must be a forefront of any education efforts. Key statistics show a large disconnect between what the public's perceived risk is of cannabis products versus the reality. A federal survey conducted by the Substance Abuse and Mental Health Services (the 2022 National Survey on Drug Use and Health (NSDUH) shows that marijuana is the least perceived to be of great risk among users aged 12-17 that were surveyed. The same age group also responded that marijuana is the easiest drug to obtain among various legal and illegal substances like alcohol, cocaine, and heroin (37.7% of 12-17-year-old respondents) (SAMHS 2022). A report from the Canadian Centre on Substance Abuse, a Canadian government public health agency, stated that "Overall, youth considered cannabis to be less harmful than alcohol and other substances." in their surveys of Canadian youths (CCSA 2022).

The prevalence of hemp-based THC tinctures and edibles means that there will be more opportunities for children and young adults to be exposed to or experiment with edibles or vapes through relatives, friends, or older acquaintances. Many children are likely not aware of the various risks and the unregulated nature of these products and assume that they will be safe to consume because of its packaging or because someone else vouched for their safety. Changing the perception of hemp cannabinoids from simply being "diet weed" to it being a potentially dangerous lab drug is a solution that could change children's behavior. If children and young adults are warned about what common Delta-8 products look like and the potential dangers of harmful chemicals, cross-

contamination, and COPE’s goal, in addition to seminars and workshops with students, should be to educate parents as well about what they do not know about these types of products and why they should be safely stored away from minors.

3. Police Compliance Investigations

Community policing solutions can be used as part of Paterson’s growing efforts to combat vice-related crime such as gambling, illegal nightclubs, human trafficking and illegal alcohol sales. Paterson’s Nightlife Task Force, created in February 2024, has already conducted operations related to illegal alcohol sales in the city. This task force could have their scope expanded to help combat illegal sales of marijuana in local businesses through compliance investigations. The current scope of the task force involves shutting down “party drugs”, clubs, and prostitution in the city of Paterson. As part of their ongoing efforts to combat drug-related crime, they could utilize compliance investigations to ensure stores selling Delta-8 THC products such as edibles are not selling them to persons under 21. There could be a bigger nexus of investigation if, for example, more dangerous narcotics such as fentanyl were found in the unlicensed Delta-8 products sold.

Other states such as Washington that have legalized cannabis sales utilize compliance investigations to combat illegal sales of both alcohol and cannabis to minors. A report by the Pacific Institute for Research and Evaluation, a public health non-profit, details the ways police departments can plan and operate effective compliance investigations to prevent drugs and alcohol from being sold to minors. A major component of these investigations is the use of trained volunteers to make purchases at these stores, called “decoy stings” (OJJP 2001). Another use of

volunteers occurs in what are called “shoulder-tap” operations, where underaged volunteers are sent to ask adults entering liquor stores to make purchases on their behalf.

Analyses of different compliance operations in several states have shown that these operations can be an effective way of reducing minor consumption of alcohol and can be modified to help combat marijuana use: “The results show a decline in drinking and driving crashes for drivers under 21 when compliance checks increase, and when compliance checks decline, traffic crashes increase.”

There are several hurdles to implementing an effective compliance investigation strategy in New Jersey. These involve issues of political will and funding. The first hurdle to proper implementation would be a lack of political will for law enforcement to enforce the law effectively enough to shut down illegal marijuana operations. Officers have little extra incentive to treat the marijuana problem as a priority compared to other law enforcement efforts. The Nightlife Task Force is focused on nightclubs and other illegal substances, but marijuana is a tangential issue to those problems and will need additional funding to shut down illegal vendors. The recruitment of candidates for decoy operations is another issue that must be solved through funding. Recruitment can be done through schools and community colleges, but additional attention must be paid by officers to safety issues regarding the children.

In terms of advocacy, the points addressed earlier in the section can be utilized by COPE in order to effectively sell the idea of additional enforcement to the city of Paterson. A survey of members of the community can be conducted to gauge the amount of knowledge the public, not just students, has on the potency of new hemp-based THC products versus their perception of how safe marijuana is in general. This is the key to ensure the public is aware of the danger unregulated

marijuana can have to children that poses a greater danger than other legal substances such as alcohol, e-cigarettes, and tobacco, and that law enforcement must act in order to effectively reduce illegal operations.

Another method that can be utilized is to prove that unregulated products made with Delta-8 THC can have harmful effects due to the nature of its creation. As Delta-8 is a synthetic, lab-made drug, there are several risks associated with its production. The first is that labs producing Delta-8 may cross contaminate the drug with other, far more potent narcotics such as fentanyl. If this happens on a large scale, there will be an increased threat of both poisoning and worse health hazards in the future.

Evaluation

For our evaluation, we decided on three main metrics, Effectiveness, Efficiency, and Political Feasibility. It is a simple matrix, but can still differentiate the solutions well enough to decide the most appropriate action. The different criteria are rated on a scale of 1 to 5 and tallied up in table 4.

Table 5. Evaluation matrix

Recategorize Delta-8 THC	Effectiveness- 5/5 By recategorizing Delta 8 and Delta-9 THC together, it allows for legal loopholes surrounding its production and sale to be closed.	Efficiency- 3/5 By focusing on strategic engagement with politicians, it can maximize the impact and likelihood of policy change.	Political Feasibility- 3/5 Advocacy groups can contact policymakers/ politicians and then influence their decisions and fight for legislative or regulatory reform.	Total: 11/15
Delta-8 THC Education	Effectiveness- 4/5 The enforcement is effective towards the people causing the problem since they would have to always be alert they would always be safe.	Efficiency- 5/5 It would be nearly immediate to implement this solution, as it only requires modifications of existing solutions and a changed message	Political feasibility- 3/5 With enough time and resources put into the problem, it has a strong chance to convince at least some middle and high school students to stay away from marijuana that they see in local stores and avoid taking them from friends or relatives.	Total 12/15
Police Compliance Investigations	Effectiveness- 4/5 Would likely lead to fewer stores selling Delta-8 products for fear of repercussions.	Efficiency- 3/5 Severity and marijuana dangers would lower due to less products being sold unlicensed	Political Feasibility- 3/5 It's likely that a lot of people will want to stop buying from the black market if police activity increases, but changing police operations is tough and requires evidence.	Total 10/15

For COPE specifically, solutions that involve advocacy may not be very effective without a coalition of community support behind them to influence the actions of law enforcement and lawmakers. Successful advocacy requires a long-term commitment to growing the small selection of

research on Delta-8 THC, local vendors, and gathering evidence that can escalate the issue to something that law enforcement cannot ignore. In addition, as COPE is a federally funded organization through grants, they are legally not permitted to lobby for legislation at the state level.

Keeping in line with this, our actionable recommendation will be our second solution: Preventing illicit use through school advocacy and breaking public perception of marijuana dangers. It is a solution that can be implemented rapidly and incorporated into COPE's arsenal of educational seminars, materials, and workshops. It also has the potential to genuinely affect the perception children have of Delta-8 and any derivative products made with it.

Conclusion

Solving this issue and preventing more hospital visits due to poisoning is a difficult task requiring cooperation from many different facets of society. While enforcement related solutions would be more effective in the long term, a small-scale solution can be implemented with much greater speed and could lead to better outcomes. If long term progress can be made by a small organization, it will likely be through changing the perception Delta-8 has with the public and getting people concerned about child poisonings, misleading packaging practices, and the legal gray areas surrounding how Delta-8 is made.

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Useful websites

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<https://newjerseystatecannabis.org/>

<https://nida.nih.gov/publications/research-reports/marijuana/marijuana-addictive>

<https://norml.org/laws/colorado-penalties/>

<https://reportfraud.ftc.gov/#/>

<https://www.cdc.gov/marijuana/featured-topics/marijuana-youth.html>

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